

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-30

NIELSEN & BAINBRIDGE, LLC
Complainant

VS.

OCEAN NETWORK EXPRESS PTE. LTD.
Respondent

**RESPONDENT OCEAN NETWORK EXPRESS PTE. LTD.'S
VERIFIED ANSWER TO VERIFIED COMPLAINT
WITH AFFIRMATIVE DEFENSES**

Respondent, Ocean Network Express Pte. Ltd. (“ONE”) answers Complainant Nielsen & Bainbridge, LLC (“Complainant” or “NBG”) Verified Complaint (“Complaint”) as follows.

INTRODUCTORY STATEMENT

Respondent repeats the headings from Complainants’ Complaint solely for ease of reference, but to the extent those headings, titles, or any other organizational markers, could be construed to contain allegations against ONE, those allegations are denied.

Most of the allegations raised in the Complaint are presented in such an ambiguously compounded way as to make it impractical, if not impossible, for ONE to submit a reasonable answer. Therefore, for many of the Complaint’s allegations, ONE can only answer with general denials or lack of knowledge and therefore deny the allegations raised in the Complaint.

VERIFIED ANSWER

I. INTRODUCTION

1. ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 1 of the Complaint.

2. The allegations raised in Paragraph 2 of the Complaint sets forth legal arguments or conclusions for which no response is required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 2 of the Complaint.

3. ONE denies the allegations raised in Paragraph 3 of the Complaint.

4. The allegations raised in Paragraph 4 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent a response is required, as to itself only ONE admits that it did enter into service contracts with Complainant for the period of May 1, 2020, through April 30, 2021, and May 1, 2021, through April 30, 2022, and that the service contracts specified minimum quantity commitment of cargo. ONE denies the remainder of the allegations raised in Paragraph 4 of the Complaint.

5. The allegations raised in Paragraph 5 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. The allegations raised in Paragraph 5 of the Complaint further set forth legal arguments or conclusions for which no response is also required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 5 of the Complaint.

6. The allegations raised in Paragraph 6 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 6 of the Complaint.

7. The allegations raised in Paragraph 7 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 7 of the Complaint.

8. The allegations raised in Paragraph 8 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 8 of the Complaint.

9. The allegations raised in Paragraph 9 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 9 of the Complaint.

10. The allegations raised in Paragraph 10 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 10 of the Complaint.

11. The allegations raised in Paragraph 11 of the Complaint are directed to “container lines” in general and not directly to ONE and therefore no response is required. The allegations raised in Paragraph 11 of the Complaint further set forth legal arguments or conclusions for which no response is also required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 11 of the Complaint.

12. The allegations raised in Paragraph 12 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. As to itself only ONE admits only that it was part of “THE Alliance”. ONE denies the remainder of the

allegations raised in Paragraph 12 of the Complaint.

13. The allegations raised in Paragraph 13 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 13 of the Complaint.

14. The allegations raised in Paragraph 14 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. As to itself only ONE admits that it entered into a tolling agreement with Complainant. ONE denies the remainder of the allegations raised in Paragraph 14 of the Complaint.

15. The allegations raised in Paragraph 15 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. The allegations raised in Paragraph 15 of the Complaint further set forth legal arguments or conclusions for which no response is also required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 15 of the Complaint as to itself.

II. COMPLAINANT

16. The allegations raised in Paragraph 16 of the Complaint describe the Complainant, Nielson and Bainbridge, LLC, and set forth legal arguments or conclusions for which no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 16 of the Complaint.

III. THE RESPONDENTS

ONE

17. ONE admits the allegations raised in Paragraph 17 of the Complaint.

18. ONE denies the allegations raised in Paragraph 18 of the Complaint.

OOCL

- 19. Not applicable.
- 20. Not applicable.
- 21. Not applicable.
- 22. Not applicable.

Evergreen

- 23. Not applicable.
- 24. Not applicable.
- 25. Not applicable.
- 26. Not applicable.
- 27. Not applicable.
- 28. Not applicable.
- 29. Not applicable.

Yang Ming

- 30. Not applicable.
- 31. Not applicable.

IV. JURISDICTION AND LEGAL AUTHORITY

32. The allegations raised in Paragraph 32 of the Complaint set forth legal arguments or conclusions for which no response is required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 32 of the Complaint.

33. The allegations raised in Paragraph 33 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. The allegations raised in Paragraph 33 of the Complaint further set forth legal arguments or conclusions

for which no response is also required. To the extent that any response is required, ONE admits only that Ocean Network Express Pte. Ltd. is an ocean common carrier and that it entered into a service contract with Complainant. ONE denies the remainder of the allegations raised in Paragraph 33 of the Complaint as to itself.

34. The allegations raised in Paragraph 34 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. The allegations raised in Paragraph 34 of the Complaint further set forth legal arguments or conclusions for which no response is also required. To the extent that a response is required, ONE admits only that it entered into a service contract with Complainant and denies the remainder of the allegations raised against ONE in Paragraph 34 of the Complaint as to itself.

35. The allegations raised in Paragraph 35 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. The allegations raised in Paragraph 35 of the Complaint further set forth legal arguments or conclusions for which no response is also required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 35 of the Complaint as to itself.

36. The allegations raised in Paragraph 36 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. The allegations raised in Paragraph 36 of the Complaint further set forth legal arguments or conclusions for which no response is also required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 36 of the Complaint as to itself.

37. The allegations raised in Paragraph 37 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. The allegations raised in Paragraph 37 of the Complaint further set forth legal arguments or conclusions

for which no response is also required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 37 of the Complaint as to itself.

38. The allegations raised in Paragraph 38 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. The allegations raised in Paragraph 38 of the Complaint further set forth legal arguments or conclusions for which no response is also required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 38 of the Complaint as to itself.

39. The allegations raised in Paragraph 39 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. The allegations raised in Paragraph 39 of the Complaint further set forth legal arguments or conclusions for which no response is also required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 39 of the Complaint as to itself.

40. The allegations raised in Paragraph 40 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. The allegations raised in Paragraph 40 of the Complaint further set forth legal arguments or conclusions for which no response is also required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 40 of the Complaint as to itself.

41. The allegations raised in Paragraph 41 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. The allegations raised in Paragraph 41 of the Complaint further set forth legal arguments or conclusions for which no response is also required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 41 of the Complaint as to itself.

V. THE MATTERS COMPLAINED OF (ALLEGED FACTS)

Alleged Extreme Port Congestion and Supply Chain Crunch Throughout the United States

42. Paragraph 42 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 42 of the Complaint.

43. Paragraph 43 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 43 of the Complaint.

44. Paragraph 44 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 44 of the Complaint.

45. Paragraph 45 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 45 of the Complaint.

46. Paragraph 46 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 46 of the Complaint.

47. Paragraph 47 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 47 of the Complaint.

48. Paragraph 48 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 48 of the Complaint.

49. Paragraph 49 of the Complaint does not raise any allegation against ONE and no

response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 49 of the Complaint.

Alleged Concerted, Coordinated, and/or Parallel Activity of Respondents

50. The allegations raised in Paragraph 50 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 50 of the Complaint.

51. The allegations raised in Paragraph 51 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. As to itself only ONE admits it was part of an “alliance.” ONE denies the remainder of the allegations raised in Paragraph 51 of the Complaint.

52. The allegations raised in Paragraph 52 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. As to itself only ONE admits that it was founded as a joint venture in 2016 by MOL, NYK, and K Line. ONE denies the remainder of the allegations raised in Paragraph 52 of the Complaint.

53. Paragraph 53 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 53 of the Complaint.

54. Paragraph 54 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 54 of the Complaint.

55. Paragraph 55 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to

admit and therefore denies the allegations raised in Paragraph 55 of the Complaint.

56. Paragraph 56 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 56 of the Complaint.

57. Paragraph 57 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 57 of the Complaint.

58. Paragraph 58 of the Complaint does not raise any allegation against ONE and no response is required To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 58 of the Complaint.

59. Paragraph 59 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 59 of the Complaint.

60. The allegations raised in Paragraph 60 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. As to itself only ONE admits that will be a member of the “Premier Alliance”. ONE denies the remainder of the allegations raised in Paragraph 60 of the Complaint.

Allegations that Respondents Systematically Failed to Meet Their Respective Service Commitments Under the Service Contracts in Favor of Cargo Shipped at Higher Rates

61. The allegations raised in Paragraph 61 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. As to itself only ONE admits that it did enter into a service contract with Complainant for the 2020 – 2021 shipping year. ONE denies the remainder of the allegations raised in Paragraph 61 of the Complaint.

62. The allegations raised in Paragraph 62 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. As to itself only ONE admits that it did enter into a service contract with Complainant for the 2021 – 2022 shipping year. ONE denies the remainder of the allegations raised in Paragraph 62 of the Complaint.

63. The allegations raised in Paragraph 63 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. As to itself only ONE admits that the service contracts specified minimum quantity commitments of cargo. ONE denies the remainder of the allegations raised in Paragraph 63 of the Complaint.

64. The allegations raised in Paragraph 64 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 64 of the Complaint.

65. The allegations raised in Paragraph 65 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 65 of the Complaint.

ONE

66. ONE admits that it did enter into a service contract with Complainant and said service contract specified minimum quantity commitments of cargo. ONE denies the remainder of the allegations raised in Paragraph 66 of the Complaint.

67. ONE denies the allegations raised in Paragraph 67 of the Complaint.

68. ONE denies the allegations raised in Paragraph 68 of the Complaint.

69. ONE denies the allegations raised in Paragraph 69 of the Complaint.
70. ONE denies the allegations raised in Paragraph 70 of the Complaint.
71. ONE denies the allegations raised in Paragraph 71 of the Complaint.
72. ONE denies the allegations raised in Paragraph 72 of the Complaint.
73. ONE denies the allegations raised in Paragraph 73 of the Complaint.
74. ONE denies the allegations raised in Paragraph 74 of the Complaint.
75. ONE denies the allegations raised in Paragraph 75 of the Complaint.
76. ONE denies the allegations raised in Paragraph 76 of the Complaint.
77. ONE denies the allegations raised in Paragraph 77 of the Complaint.
78. ONE denies the allegations raised in Paragraph 78 of the Complaint.
79. ONE denies the allegations raised in Paragraph 79 of the Complaint.
80. ONE denies the allegations raised in Paragraph 80 of the Complaint.
81. ONE denies the allegations raised in Paragraph 81 of the Complaint.
82. ONE denies the allegations raised in Paragraph 82 of the Complaint.
83. ONE denies the allegations raised in Paragraph 83 of the Complaint.
84. ONE denies the allegations raised in Paragraph 84 of the Complaint.
85. ONE denies the allegations raised in Paragraph 85 of the Complaint.
86. ONE denies the allegations raised in Paragraph 86 of the Complaint.
87. ONE denies the allegations raised in Paragraph 87 of the Complaint.
88. ONE denies the allegations raised in Paragraph 88 of the Complaint.
89. ONE denies the allegations raised in Paragraph 89 of the Complaint.
90. ONE denies the allegations raised in Paragraph 90 of the Complaint.

OOCL

- 91. Not applicable.
- 92. Not applicable.
- 93. Not applicable.
- 94. Not applicable.
- 95. Not applicable.
- 96. Not applicable.
- 97. Not applicable.
- 98. Not applicable.
- 99. Not applicable.
- 100. Not applicable.
- 101. Not applicable.
- 102. Not applicable.
- 103. Not applicable.
- 104. Not applicable.

Evergreen

- 105. Not applicable.
- 106. Not applicable.
- 107. Not applicable.
- 108. Not applicable.
- 109. Not applicable.
- 110. Not applicable.
- 111. Not applicable.

112. Not applicable.

113. Not applicable.

114. Not applicable.

115. Not applicable.

116. Not applicable.

Yang Ming

117. Not applicable.

118. Not applicable.

119. Not applicable.

120. Not applicable.

121. Not applicable.

122. Not applicable.

123. Not applicable.

124. Not applicable.

125. Not applicable.

126. Not applicable.

127. Not applicable.

Alleged Respondents' Unreasonable and Unfair Practice of Coercing Extracontractual Surcharges from Complainant

128. The allegations raised in Paragraph 128 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 128 of the Complaint.

129. The allegations raised in Paragraph 129 of the Complaint directed to Respondents

that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 129 of the Complaint.

130. The allegations raised in Paragraph 130 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 130 of the Complaint.

ONE

131. ONE denies the allegations raised in Paragraph 131 of the Complaint.

132. ONE denies the allegations raised in Paragraph 132 of the Complaint.

133. ONE denies the allegations raised in Paragraph 133 of the Complaint.

134. ONE denies the allegations raised in Paragraph 134 of the Complaint.

135. ONE denies the allegations raised in Paragraph 135 of the Complaint.

OOCL

136. Not applicable.

137. Not applicable.

138. Not applicable.

Evergreen

139. Not applicable.

140. Not applicable.

141. Not applicable.

142. Not applicable.

143. Not applicable.

144. Not applicable.

Alleged Effect on Complainant

145. The allegations raised in Paragraph 145 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 145 of the Complaint.

146. The allegations raised in Paragraph 146 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 146 of the Complaint.

147. Paragraph 147 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 147 of the Complaint as they relate to other Respondents.

148. Paragraph 148 of the Complaint does not raise any allegation against ONE and no response is required. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 148 of the Complaint.

The Allegation on Demurrage and Detention Charges

149. The allegations raised in Paragraph 149 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 149 of the Complaint.

150. Paragraph 150 of the Complaint does not raise allegations against ONE and sets

forth the basis for the remedy sought by Complainant for which no response is required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 150 of the Complaint and submits the Complainant is not entitled to the relief sought.

151. Paragraph 151 of the Complaint does not raise allegations against ONE and sets forth the basis for the remedy sought by Complainant for which no response is required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 151 of the Complaint and submits the Complainant is not entitled to the relief sought.

152. Paragraph 152 of the Complaint does not raise allegations against ONE and sets forth the basis for the remedy sought by Complainant for which no response is required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 152 of the Complaint and submits that Complainant is not entitled to the relief sought.

153. The allegations raised in Paragraph 153 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 153 of the Complaint.

154. ONE denies the allegations raised in Paragraph 154 of the Complaint.

155. The allegations raised in Paragraph 155 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 155 of the Complaint.

156. The allegations raised in Paragraph 156 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 156 of

the Complaint.

157. The allegations raised in Paragraph 157 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 157 of the Complaint.

ONE

158. ONE denies the allegations raised in Paragraph 158 of the Complaint.

159. ONE denies the allegations raised in Paragraph 159 of the Complaint.

160. ONE denies the allegations raised in Paragraph 160 of the Complaint.

161. ONE denies the allegations raised in Paragraph 161 of the Complaint.

162. ONE denies the allegations raised in Paragraph 162 of the Complaint.

163. ONE denies the allegations raised in Paragraph 163 of the Complaint.

164. ONE denies the allegations raised in Paragraph 164 of the Complaint.

165. ONE denies the allegations raised in Paragraph 165 of the Complaint.

OOCL

166. Not applicable.

167. Not applicable.

168. Not applicable.

Evergreen

169. Not applicable.

170. Not applicable.

171. Not applicable.

Yang Ming

172. Not applicable.

173. Not applicable.

174. Not applicable.

175. Not applicable.

* * *

176. Paragraph 176 of the Complaint does not raise any allegation against ONE and no response is required. Commissioner Rebecca F. Dye's Final Report from the FMC Fact Finding Investigation 29 speaks for itself. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 176 of the Complaint.

177. Paragraph 177 of the Complaint does not raise any allegation against ONE and no response is required. The language of the interpretative rule speaks for itself. To the extent that a response is required, ONE lacks sufficient knowledge to admit and therefore denies the allegations raised in Paragraph 177 of the Complaint.

178. The allegations raised in Paragraph 178 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 178 of the Complaint.

179. The allegations raised in Paragraph 179 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 179 of the Complaint.

180. The allegations raised in Paragraph 180 of the Complaint directed to Respondents

that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 180 of the Complaint.

Respondents' Alleged Refusal to Deal or Negotiate

181. The allegations raised in Paragraph 181 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 181 of the Complaint.

182. The allegations raised in Paragraph 182 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 182 of the Complaint.

183. The allegations raised in Paragraph 183 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 183 of the Complaint.

Allegations that Respondents' Practices Enriched Themselves

184. The allegations raised in Paragraph 184 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 184 of the Complaint.

185. ONE denies the allegations raised in Paragraph 185 of the Complaint.

186. Not applicable.

187. Not applicable.

188. Not applicable.

Complainant's Alleged Injuries

189. The allegations raised in Paragraph 189 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 189 of the Complaint.

190. The allegations raised in Paragraph 190 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 190 of the Complaint.

191. The allegations raised in Paragraph 191 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 191 of the Complaint.

192. The allegations raised in Paragraph 192 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 192 of the Complaint.

193. The allegations raised in Paragraph 193 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 193 of the Complaint.

194. The allegations raised in Paragraph 194 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 194 of the Complaint.

VI. CAUSES OF ACTION

COUNT I: VIOLATION OF 46 U.S.C. § 41102(c)

195. Paragraph 195 of the Complaint simply repeats and realleges prior paragraphs to which ONE has already responded. To the extent that a response is required, ONE incorporates by reference each foregoing response to paragraph 1 through 194 as if fully set forth herein.

196. The allegations raised in Paragraph 196 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 196 of the Complaint.

COUNT II: VIOLATION OF 46 U.S.C. § 41102(c) & 46 C.F.R. § 545.5

197. Paragraph 197 of the Complaint simply repeats and realleges prior paragraphs to which ONE has already responded. To the extent that a response is required, ONE incorporates by reference each foregoing response to paragraph 1 through 196 as if fully set forth herein.

198. The allegations raised in Paragraph 198 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 198 of the Complaint.

199. The allegations raised in Paragraph 199 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 199 of the Complaint.

COUNT III: VIOLATION OF 46 U.S.C. § 41104(a)(2)

200. Paragraph 200 of the Complaint simply repeats and realleges prior paragraphs to which ONE has already responded. To the extent that a response is required, ONE incorporates by reference each foregoing response to paragraph 1 through 199 as if fully set forth herein.

201. The allegations raised in Paragraph 201 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 201 of the Complaint.

COUNT IV: VIOLATION OF 46 U.S.C. § 41104(a)(10)

202. Paragraph 202 of the Complaint simply repeats and realleges prior paragraphs to which ONE has already responded. To the extent that a response is required, ONE incorporates by reference each foregoing response to paragraph 1 through 201 as if fully set forth herein.

203. The allegations raised in Paragraph 203 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 203 of the Complaint.

VII. CAUSATION

204. The allegations raised in Paragraph 204 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 204 of the Complaint.

205. The allegations raised in Paragraph 205 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent

that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 205 of the Complaint.

206. The allegations raised in Paragraph 206 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 206 of the Complaint.

207. The allegations raised in Paragraph 207 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 207 of the Complaint.

VIII. REPARATIONS

208. The allegations raised in Paragraph 208 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. The allegations raised in Paragraph 208 of the Complaint further set forth legal arguments or conclusions for which no response is also required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 208 of the Complaint.

209. The allegations raised in Paragraph 209 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 209 of the Complaint.

210. The allegations raised in Paragraph 210 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 210 of

the Complaint.

211. The allegations raised in Paragraph 211 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. The allegations raised in Paragraph 211 of the Complaint further set forth legal arguments or conclusions for which no response is also required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 211 of the Complaint.

212. The allegations raised in Paragraph 212 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. The allegations raised in Paragraph 212 of the Complaint further set forth legal arguments or conclusions for which no response is also required. To the extent that a response is required, ONE denies the allegations raised in Paragraph 212 of the Complaint.

213. The allegations raised in Paragraph 213 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 213 of the Complaint.

214. The allegations raised in Paragraph 214 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 214 of the Complaint.

215. The allegations raised in Paragraph 215 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 215 of the Complaint.

216. The allegations raised in Paragraph 216 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 216 of the Complaint.

217. The allegations raised in Paragraph 217 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 217 of the Complaint

218. The allegations raised in Paragraph 218 of the Complaint directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required, and as to itself, ONE denies the allegations raised in Paragraph 218 of the Complaint.

IX. PRAYER FOR RELIEF

219. The allegations raised in Complainant's Prayer for Relief directed to Respondents that have been severed from this case are not applicable and no response is required. To the extent that a response is required to Complainant's Prayer for Relief, and as to itself, ONE denies the allegations raised therein.

RESPONDENT'S AFFIRMATIVE DEFENSES

For its affirmative defenses, Respondent states as follows:

1. The Federal Maritime Commission lacks subject matter jurisdiction.
2. Breaches of Service Contracts are outside the Federal Maritime Commission's subject matter jurisdiction.
3. The Complaint fails to properly state a claim upon which relief may be granted.
4. The Complainant's claims are barred by the exclusive remedy provision in 46 U.S.C. § 40502(f).
5. The Complainant is not entitled to reparations because it suffered no damages.
6. The Complainant's claims of a failure by Respondent to meet a contractual minimum quantity commitment, which is denied, is a contract claim and specific remedies are provided under the applicable contract that do not include or support the claims for loss now alleged by Complainant.
7. Respondent's practices and conduct were neither unjust nor unreasonable.
8. The Complainant's claims are barred by the applicable contractual terms.
9. Any damages sustained by the Complainant, as alleged in the Complaint, were proximately, directly, and solely caused by the acts or omissions of others for whom Respondent is not responsible.
10. The Complainant's damages, if any, were caused by Complainant's, or its agents' own acts or omissions beyond the control of Respondent.
11. The Complainant's assumption of the risk.
12. The Complaint fails to properly allege a violation of the Shipping Act.
13. Accord and satisfaction.
14. The Complainant's claims are barred by the doctrine of acquiescence.

15. The Complainant's claims are barred by the doctrine of unclean hands.
16. The Complainant has failed to mitigate its damages.
17. The Complainant's damages, if any, were caused by restraint of princes, acts of god, force majeure or events beyond the control of Respondent.
18. Contractual breaches, if any, were not customary, continuous, or systemic.
19. The alleged violations of the Shipping Act, if any, were not customary, continuous, or systemic.
20. The Complainant's claims are barred by the doctrines of waiver, estoppel, and laches.
21. The Complainant's claims are subject to liquidated damages terms.
22. Respondent did not unreasonably refuse to deal or negotiate with Complainant.
23. The Complaint fails to allege the essential elements of 46 U.S.C. § 41102(c), 46 U.S.C. § 41104(a)(2); 56 U.S.C. § 41104(a)(10), and/or 46 C.F.R. § 545.5.
24. The conduct which is the subject to the Complaint does not constitute a practice within the meaning of 46 U.S.C. § 41102(c).
25. If there were any damages to the Complainant as alleged in the Complaint, Respondent is not liable to Complainant by reason of the provisions contained in the bill(s) of lading, contract of carriage, charter party, applicable tariffs, special contract, or service contract.
26. Complainant lacks standing to bring the Complaint or seek the reliefs requested.
27. Some or all of the charges which are subject to the Complaint were imposed by and paid to persons other than Respondent.
28. Some or all of the claims alleged in the Complaint are time barred by the applicable

Statute of Limitation.

29. Respondent reserves the right to amend this Answer and/or plead any additional affirmative defenses and/or bring a third-party claim as may be warranted.
30. Respondent reserves all rights to bring a counterclaim against Complainant (or any of its related persons or companies) for any outstanding charges owed by Complainant to Respondent before the Federal Maritime Commission or any Court or Tribunal of competent jurisdiction.
31. Respondent reserves all rights to arbitrate or proceed in any forum of competent jurisdiction that may exist between the parties.

WHEREFORE, Respondent Ocean Network Express Pte. Ltd. respectfully requests that the Federal Maritime Commission issue an order denying Complainant's requested relief, dismissing the Complaint, and awarding ONE all costs, fees, including reasonable attorneys' fees, of this action, as well as such other and further relief as may be deemed just and proper.

Respectfully submitted,

MONTGOMERY McCracken
WALKER & RHOADS LLP

/s/ Timothy Semenoro

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*Counsel for Respondent
Ocean Network Express Pte. Ltd.*

Dated: January 13, 2026

VERIFICATION

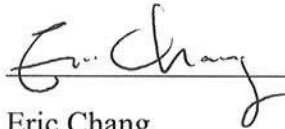
I, Eric Chang, declare as follows:

1. I am Acting General Counsel for Ocean Network Express (North America) Inc., agent for Ocean Network Express Pte. Ltd.
2. I am duly authorized to make this verification on behalf of Ocean Network Express Pte. Ltd.
3. I have read the foregoing Respondent Ocean Network Express Pte. Ltd.'s Verified Answer to Verified Complaint with Affirmative Defenses, and believe, to the best of my knowledge, information, and belief, that the facts stated therein are true and correct.

I verify under penalty of perjury that the foregoing is true and correct.

Dated: January 13, 2026

By:

A handwritten signature in cursive script, appearing to read "Eric Chang", is written over a horizontal line.

Name:

Eric Chang

Title:

Acting General Counsel, Ocean Network Express (North America) Inc.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 13th day of January 2026, the foregoing Verified Answer to Verified Complaint with Affirmative Defenses was served via electronic mail on:

HUTH REYNOLDS LLP
41 Cannon Court
Huntington, NY 11743
*Counsel for Complainant
Nielsen & Bainbridge, LLC*

To the Attention of:

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/s/Kaspar Kielland